

IN RE: BARRY

Case Number: 25CV-0207449

Disclosure Re: guardianship cases involving Shasta County Health and Human Services Agency-Judge Wood discloses that her step-daughter, Erinn Watts, is the Administrative Branch Director of the Health and Human Services Agency. In that position, Judge Wood's step-daughter does not have any involvement in the investigation, management, prosecution or defense of guardianship cases. However, the Court makes this disclosure of an employment relationship between an investigating agency and the Court's first degree relative as required by California Code of Judicial Ethics.

Petitioners/Guardians Stacey and Hector Barry (maternal grandparents) seek to change the name of their minor ward. The Petition contains the following defects:

1. CCP § 1277 requires that a copy of the Order to Show Cause ("OSC") be published in a newspaper of general circulation once a week for four consecutive weeks. No proof of publication has been filed. The Court notes a copy of a proof of publication attached to the Petition for an older case; this proof of publication is insufficient for the present case as it gave notice for a different case and hearing date entirely.
2. CCP § 1277(f) requires the Guardians to personally serve the parents at least 30 days before the hearing and if either, or both, parents are deceased then the living grandparents must also be personally served 30 days before the hearing. According to the information provided by the Guardians, the mother is deceased and therefore the OSC is required to be personally served on the father and the paternal grandparents. No proof of service is on file. Insufficient information has been provided to dispense with notice to these parties.

This matter is continued to **Monday, July 14, 2025, at 1:30 p.m. in Department 42** for further proceedings on the Petition for Change of Name. The Petitioners shall file an Amended Order to Show Cause for the continued hearing date. The Amended Order to Show Cause must be personally served on the father and paternal grandparents at least 30 days before the hearing. In the alternative, Petitioners can submit a declaration reflecting their efforts to locate and serve these individuals including their last known residences. Petitioner must also file a proper proof of service. **No appearance is necessary on today's calendar.**

GUARDIANSHIP OF LEONARDO BOUNLEUTTAY

Case Number: CVPG18-0029802

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This matter is on calendar for further proceedings regarding a Petition for Transfer of Venue filed by the Guardian on January 6, 2025. An Amended Petition has not been filed to cure any defects noted at the hearing on March 3, 2025. A Notice of Hearing has not been filed or served for today's

date on any individuals entitled to notice. **An appearance is necessary on today's calendar for status of an Amended Petition. Warning: Failure to appear on today's calendar will result in the issuance of an Order to Show Cause re: monetary sanctions in the sum of \$250.00.**

GUARDIANSHIP OF TRISTAN & KALEB FINONA

Case Number: 25PG-0032915

Disclosure Re: guardianship cases involving Shasta County Health and Human Services Agency-Judge Wood discloses that her step-daughter, Erinn Watts, is the Administrative Branch Director of the Health and Human Services Agency. In that position, Judge Wood's step-daughter does not have any involvement in the investigation, management, prosecution or defense of guardianship cases. However, the Court makes this disclosure of an employment relationship between an investigating agency and the Court's first degree relative as required by California Code of Judicial Ethics.

This matter is on calendar for hearing on a Petition for Appointment of Guardian of the Person of minors, Tristan and Kaleb Finona. The Petition was filed by the minor's paternal grandmother and aunt, Justina Perez and Deemarie Perez. Letters of Temporary Guardianship issued on May 1, 2025. The Temporary Guardianship's powers are set to expire today unless further extended.

The paternal grandmother/Petitioner has signed a consent and waiver of notice. The Court will find the minor Kaleb to have been served as there is a temporary guardianship in place with Petitioners. The Court will dispense with notice to the deceased mother, father, and maternal grandfather. There is no proof of service of the Notice of Hearing for Tristan, the maternal grandmother, and siblings Taven, Keoni, and Kiana. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The parties may be served by mail. Prob. Code § 1511(c). For siblings under 12 years of age, service can be on the parent or guardian with whom the sibling resides. Prob. Code § 1460.1. Alternatively, the above parties can sign a consent and waiver of notice (GC-211, section 4), in lieu of being served.

The Court has reviewed the Court Investigator's report, filed May 20, 2025, which recommends granting the Petition. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage.

This matter is continued to **Monday, July 7, 2025, at 8:30 a.m. in Department 42** for further proceedings on the Petition. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**